

sell in that character, that the purchaser may not say he was led to suppose from the advertisements of sale, that the vendors were the beneficial proprietors, and that the contract must, therefore, draw with it the usual incidents, and that the purchaser ought to have the benefit of the ordinary covenants. If the trust for sale is to be exercised with the *consent* [or *at the request*] of the *tenant for life* who joins in a sale, he must enter into the usual covenants for title (a).

53. **Mortgagees' covenants.** — *Mortgagees* with a *power of sale* are regarded as trustees, and covenant only against their own acts (b). To the extent of their mortgage money they are beneficially interested, not however as owners of the estate, but only as incumbrancers entitled to a charge.

[54. By the Conveyancing and Law of Property Act, 1881, s. 7, where, in any conveyance made after the 31st December, 1881, any person conveys, and is expressed to convey, as trustee or mortgagee, or as personal representative of a deceased person, or as committee of a lunatic so found by inquisition, or under an order of the Court, a covenant against incumbrances by such person in the form stated in the Act is to be deemed to be included in the conveyance, and is by virtue of the Act to be implied, but such covenant is not to be implied unless the person so conveying is in the conveyance expressed to convey in one of the above capacities.

The benefit of the covenant so implied is to be annexed to and go with the estate of the implied covenantee. A covenant so implied may be varied or extended by deed.]

55. **Attested copies and covenant for production.** — It was laid down by Lord Eldon, that *assignees of bankrupts* [*443] * were bound, in case they could not deliver up the title deeds, to furnish the purchaser with *attested copies* and to *covenant for production* of the originals, the covenant to be confined to the period during which the

latter case the V. C. added that if the lease were a *beneficial lease claimed* by the *executors*, that would be a different case, and they must enter into full covenants, p. 580; and see *Staines v. Morris*, 1 V. & B. 12.

(a) *Earl Poulett v. Hood*, 5 L. R. Eq. 115; [*Re Sawyer and Baring's Contract*, 53 L. J. N. S. Ch. 1104; 33 W. R. 26.]

(b) *Sugd. Vend. & Pur.* p. 61, 11th edit.